Somaiya Vidyavihar University
(Center of Examination)
Circular/COE/133/2022

Attention: Exam Cells/Students/Faculty/Staff
Subject: Unfair Means during Evaluation/Examination
Reference: Circulars, notices and trailing emails

We all as a student dream about our career and we do all necessary efforts to get admission to desired programme of the University. The teaching learning process is well defined and we undergo it to understand the fundamental and conceptual knowledge in chosen field of the programme. We learn advance topics to inculcate skills to become employable or do research and development in our chosen career. Our parents/guardians support financially, morally in all respect and they also dream about our career with expectations that we will undergo programme with all efforts needed. They expect we complete the programme with certain level of performance index i.e. SGPA/SGPI.

During evaluation/examination process we need to study certain modules and we appear for the examination to test ourselves how much we have developed understanding, expertise and depth of knowledge relevant to field of chosen programme. We do study and appear for the examinations. But sometime we do lag behind the studies due various reasons and we realised that preparations are not up to the desired level and we try to choose the path of unfair means during the examinations.

At our university level we talk about such unfair means during examinations right from the orientation to time to time instructions. We even give such instructions in our examination Time Table and in examination hall before the commencement of the examination. In spite of it some students who are not able to control their mind knowingly or unknowingly selects the path of unfair means to achieve the desired performance in the examinations. But we all know at our university we do not support such unfair means of any level during the evaluation/examinations and the students are caught while doing unfair means. Such cases are then forwarded with well-defined necessary documentation to College Prevention of Unfair Means Committee (CPUMC) and then sent to University Prevention of Unfair Means Committee (UPUMC) for final approval. These cases are addressed and resolved as per the sections 20,20A and 47 of exam manual for unfair means during the evaluation/examination process.

The students are requested not to become impatient which leads to adopt the act of unfair means but to discuss the same with parents/guardians/teachers freely and try to get out of it. At university level the students are free to meet any faculty/teacher/authorities to discuss. Counsellor is one of the members of the UPUMC committee and the students can have confidential discussion with the counsellor any time to get proper guidelines/advice. The contact details of counsellor can be sought from the exam cells. Many students have followed this practice and we observed its impact on the cases reported for unfair means.

The students should note that university does not permit unfair means during evaluation/examinations and they are also requested to avoid such practice and in case if tempted to do so it means they need to undergo counselling. For any further clarifications/ counselling required in this regard the students are free to contact exam cell or COE office any time in person or under emergency on phone.

COE-SVU

Date: 06/01/2023

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Somaiya Vidyavihar University
(Center of Examination)

Circular/COE/134/2022

Attention: Exam Cells/HOIs/Faculty/Staff

Subject: Reporting Unfair Means Cases

Reference: Circulars, notices and trailing emails

Following are some of the acts of the student in the examination hall which are considered as unfair means. The mentioned acts is not an exhaustive but noted most commonly seen. The examination means any type of evaluation theory, practical, oral, seminar, presentation, on screen etc.

- Carrying any electronic gadgets like mobile phone, smart watch, programmable calculator etc.
- Carrying any book, notes, paper, charts or log book or data sheet or data book marked /written material with other than printed matter etc.
- Misbehaviour, misconduct, making arguments with the supervisor/authorities, any act which is disturbing to fellow colleagues in the examination hall etc.
- Referring to the website link, shared files/material, downloaded files/material, software tool, use of pen drive etc. which is prohibited by the examiner during the on screen examination
- Copying from the fellow colleagues answer sheet during the examination or observed/ realised/noted by the examiner during the assessment
- Taking any help, exchange or loan of charts or any instruments or any other material from fellow colleagues without the permission from the supervisor
- Taking help of other student/person or referring any material inside or outside the examination hall during the examination
- Other than any commonly observed act listed above but which comes under the unfair means

In continuation to **circular no 133 dated 6th January 2023** and as per the **section 20,20A and 47** of examination manual we have certain steps to report the unfair means cases during the examination. They are very common steps being followed across the universities/institutions.

The steps are as below

1. If any supervisor/faculty/staff/authority finds that any student or group of students are involved doing unfair means in examination hall it should be immediately reported to chief conductor/ senior supervisor
2. The chief conductor/senior supervisor will visit the examination hall along with the necessary document no. 32 and new answer sheet
3. The document 32 contains the declaration by the student and report of the junior supervisor. The student should note that they will be given fair opportunity to defend their case/prove their innocence during the meeting with College Prevention of Unfair Means Committee (CPUMC) meeting.
4. The student will be given new answer sheet on which the time of issue will be mentioned to continue to write the examination means allowed to continue to appear/attempt the examination. In no case the student is asked to walk away from the examination hall or rather it is expected that the student did not leave the examination hall and continue appearing for the examination
5. If required the chief conductor/senior supervisor may inform the students' parents/guardians before the student leaves the campus after the examination
6. The individual student is informed with a letter (Document no. 70) with a mention about the schedule of the meeting with CPUMC. All such cases during the one set of examinations will be forwarded to CPUMC
7. The CPUMC will verify the reported unfair means cases on the case to case basis and the student and junior supervisor or anyone who is concerned to the case are given fair opportunity to present their stand/views/opinion
8. The consolidated report (Document no. 71) of the CPUMC is submitted to the HOI/Dean for recommendations and then to University Prevention of Unfair Means Committee (UPUMC) for further process and approval (Document no. 73). A letter is issued to the individual student about the decision of UPUMC (Document no. 74)
9. The student is intimated with a letter mentioning the final decision which is considered as a final one. Refer to section 20,20A and 47 for further details/guidelines

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Levels of Punishments
(As per Guideline Section 20A of Exam Manual

20A	**The different levels of punishment may be recommended by CPUMC/UPUMC based on the fact findings / detailed investigations of the case**
i.	The student shall be given **warning letter** stating not to repeat the any type of unfair means in future and it will be endorsed by the said student in writing **and/or** The **said examination/paper/course/subject** appeared by the student shall be considered as **null and void**
ii.	The said **semester/term examination in full** appeared by the student shall be considered as **null and void**
iii.	The student shall **repeat the semester/term** in **next academic year** and shall have to pay the **requisite fee** to **reappear** the said semester/term
iv.	The student shall be debarred for **03 (three years)** from the college and shall be allowed to **reappear** the examination of the said **semester/term in full**
v.	The student shall **be rusticated** from the college and his/her **registration/admission** for the said programme **shall stand cancelled**
vi.	In addition to levels - i to v – HOI/Dean may recommend additional punishment

Date: 15/01/2023 **COE-SVU**
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Circular/COE/221/2024

Attention: Exam Cells/Students/Faculty/Staff
Subject: Unfair Means during Evaluation/Examination – carrying mobile phone
Reference: Circulars, notices and trailing emails

In continuation to circular no 133 and 134 it is observed that in spite of repeated warnings given the students are carrying electronic gadgets particularly **Mobile Phones** during the examinations mainly with the assumption that they will use AI tools to get answers to the questions asked.

We have sections 20 and 47 of exam manual which clearly mentions about the guidelines relevant to unfair means during any type of examination.

It has been repeatedly and consistently notified at various levels that **carrying mobile phone during the any type of evaluation/examination is considered as act of unfair means** and such cases will be reported to prevention of unfair means committee. As per section 20(D) of exam manual in such case the student is allowed to continue to appear for the said examination.

We understand that the mobile phone has become very essential device to carry particularly for students. Parents / guardians also want students to carry it. Hence exam cell do return the mobile phone to student and the exam cell notifies to student to call parents / guardians to inform them about the unfair means. As per section 20 (E) the exam cells is also expected to call parents/guardian and inform them about the unfair means immediately.

The mobile phone is returned with the condition that the student gives undertaking (Document no. 32) mentioning that the mobile is received which was carried during the examination and will accept the decision given without considering mobile as a proof/evidence of unfair means.

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Date: 05/04/2025
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